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Fine for GDPR Violation

The National Supervisory Authority has completed an investigation in July 2022 regarding the operator Sephora Cosmetics România SA and found a violation of the provisions of Article 21 of the General Data Protection Regulation.

The operator Sephora Cosmetics România SA was sanctioned with a fine amounting to 9,883.60 lei (equivalent to 2,000 EURO). The investigation was initiated following a complaint from a petitioner who reported receiving commercial SMS messages on her phone from Sephora Cosmetics România SA. Additionally, she claimed that following her repeated requests made at the end of 2020 to not have her data used for marketing purposes, Sephora informed her at the beginning of 2021 that her data would no longer be processed for marketing purposes. However, subsequently, during the year 2021, the petitioner received unsolicited commercial SMS messages from Sephora Cosmetics România SA.

During the investigation, it was found that Sephora Cosmetics România SA sent the petitioner, on her phone number, several commercial messages for marketing purposes during the year 2021, despite the fact that she had exercised her right to object regarding the use of her phone number for marketing purposes through requests sent to the operator in 2020.

As such, Sephora Cosmetics România SA was sanctioned for violating the provisions of Article 21 of the General Data Protection Regulation, which guarantees the data subject's right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them.

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